

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PANAMA

Complete Community Opposition How-To

This guide uses the Panamanian terms and bodies you'll actually run into — the estudio de impacto ambiental and its category, the foro público, the Resolución Ambiental, the comarca and consulta previa, the acción de inconstitucionalidad — and explains each in plain words the first time. Panama reformed its environmental rules by decree in mid-2026, so check the current regulation before relying on any procedural detail.

INTRODUCTION & FRAMEWORK

In late 2023, Panama gave the clearest recent proof anywhere that a community can undo a megaproject. After the National Assembly rushed through **Law 406**, a law containing a new forty-year contract for **Cobre Panamá** — the largest open-pit copper mine in Central America, run by the Canadian company First Quantum through its subsidiary Minera Panamá, in a biodiverse jungle threatening the region's water — the country erupted. For **thirty-nine days**, in **the largest peaceful protests in decades**, young people, unions, and Indigenous groups blocked roads and the mine's power plant and brought Panama to a standstill. And on **28 November 2023 the full Supreme Court, all nine justices, unanimously declared Law 406 entirely unconstitutional**. The President ordered the mine's closure and a moratorium on new mining. It was not even the first time: the Court had **already struck down the mine's original contract in 2017**. Panama's record is unmistakable — **a mining law approved by parliament can be undone by citizens using a constitutional action**.

The young people, unions, and Indigenous groups who brought down Law 406 in thirty-nine days of protest drew on a toolkit anchored by a constitutional route. Most large projects need an **environmental impact study (estudio de impacto ambiental)** whose **category** decides whether the public gets a formal **forum (foro público)**. Indigenous lands are governed by **comarcas** and their **congresos generales**, with rights to **prior consultation**. And the courts can annul administrative acts and, through the **acción de inconstitucionalidad**, strike down a law or a contract approved by law — the action that felled the mining law twice, in 2017 and again in 2023. But these tools have real limits, and this guide states them plainly. The closure has been long and contested, tangled in international arbitration, and a later pro-business government has sought to resolve or reopen it — so a court win must be defended. And the 2023 protests, for all their power, were met with real repression: arrests, and documented human-rights violations against demonstrators. Winning here took mass courage as well as a lawsuit, and it carried risk — protest can be policed hard, and your people's safety comes first.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Panamanian project needs its **environmental resolution** (resting on the EIA and, by category, a public forum); on Indigenous land it needs the **comarca's** consultation; it can be annulled in the **contencioso-administrativo** courts or, if approved by law, struck down by the **acción de inconstitucionalidad**; and — as at Cobre Panamá — it can be stopped by a mobilised public. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project or its contract was approved by law, the acción de inconstitucionalidad is a live, proven route** — the Supreme Court struck the mining law down twice.
- **If the EIA is flawed or the category wrongly denied the public a forum, the contencioso-administrativo courts can annul the resolution.**
- **On Indigenous land, the comarca's consultation rights are a powerful lever.**
- **Mass mobilisation genuinely works here** — but it can be policed hard, so weigh the risks and protect people.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the EIA and its forum, the comarca's consultation, the courts, the constitutional action — and **run every front at once**: the documents, the participation, the courts, the movement, the press. That's how Cobre Panamá was undone.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental resolution (Resolución Ambiental)**, issued by the environment ministry (**MiAmbiente**) on the basis of the **EIA**, whose **category** (roughly, the level of impact) determines the participation required — including whether there's a formal **foro público**. Sector regulators grant mining and other concessions. **Comarcas** and their **congresos generales** govern Indigenous territories. And the **courts** — the Supreme Court's **Sala Tercera** for administrative acts, and its **Pleno** for constitutional actions — review the legality of it all. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and its category. The developer files the EIA in a category; the category decides the participation. *Your opening — often the first fight:* a project wrongly placed in a low category to avoid a public forum can be challenged, and you can demand the forum the impact requires.

The public forum and participation. For higher categories, a **foro público** and a citizen-participation plan apply. *Your opening — and it arms every later step:* take part, put your objections on the record.

The environmental resolution. MiAmbiente approves. *Your opening:* challenge it in the **contencioso-administrativo** (Sala Tercera).

A law or contract approved by parliament. *Your opening — the proven one:* the **acción de inconstitucionalidad** before the Pleno of the Supreme Court, which anyone can file against a law.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign parent is sensitive to investors and reputation. **What it still needs** — the resolution not final or under challenge, the concession not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — international financiers and, for a contract approved by law, the terms the public can scrutinise (the "too generous" contract fuelled the 2023 anger).

Who's Supposed to Be Watching

Each is an ally or an arena. **MiAmbiente** runs the environmental resolution and can be pressed. The **Sala Tercera** annuls unlawful administrative acts; the **Pleno of the Supreme Court** hears the acción de inconstitucionalidad — the action that annulled the mining law. **Amparo de garantías** protects fundamental rights. The comarca's **congreso general** defends Indigenous territory. The **Defensoría del Pueblo** takes rights complaints. And Panama's **strong civic movements, its unions and student and Indigenous organisations, and its press** are the forces that reach furthest — the combination that beat Cobre Panamá.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a law/contract can be attacked constitutionally, whether the EIA or category is flawed, whether Indigenous rights engage, and how much public feeling is roused.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the EIA / forum	15–35%	during review	low	On record; conditions or a redo
Challenge to the category (win a forum)	20–45%	months	low	Public forum required; process reopened
Contencioso-administrativo (Sala Tercera)	25–50%	1–3 yr	low–mod	Environmental resolution annulled
Acción de inconstitucionalidad (Pleno)	30–55%	months–2 yr	low	Law/contract struck down (Cobre Panamá)
Comarca consultation / Indigenous rights	25–50%	varies	low	Consent withheld; project stalled
Mass mobilisation	35–60%	weeks–months	low but risky	State retreat; law struck (2023)
Everything together (constitutional flaw, public roused)	45–65%	months–2 yr	low–mod	Struck down, annulled, delayed
Everything together (state-backed, clean process)	20–45%	1–3 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **acción de inconstitucionalidad** and **mass mobilisation**, backed by the contencioso courts and Indigenous rights. Cobre Panamá shows the ceiling — a mining law struck down twice, the mine ordered closed. The honest floor is a long, arbitration-tangled closure a later government tries to reopen, and protest that was policed hard — so defend the win, and protect people.

On cost: objecting, organising, and filing an acción de inconstitucionalidad are cheap — anyone can bring the constitutional action; unions, student, and Indigenous organisations bring mass; and the constitutional route has twice undone this very mine.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this resolution, this category, this law — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its foreign parent, its financiers.
- 2. Where is it, and what does it touch?** Get the footprint and lay it over water and rivers, forest and jungle, a comarca or Indigenous land, protected areas, communities. **Water and a comarca are your sharpest levers** — Cobre Panamá roused a nation over water and a "too generous" contract.
- 3. What stage is it at, and what's the next deadline — and is it a law?** Is the EIA in review? What category? Is a foro público due? Has the resolution issued (opening the Sala Tercera)? Was it **approved by law** (opening the acción de inconstitucionalidad)? These openings are time-bound.
- 4. What does it still need that it lacks?** A resolution not final, a concession not granted, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbouring communities, the comarca, unions, students, national civic networks. Cobre Panamá united an entire country.

What this looks like in real life. A community learns a mine is planned in jungle that feeds its water, its contract rushed through the Assembly. The five questions yield: a foreign parent behind it; a site threatening water (the rousing lever); a contract approved by law (the constitutional route) and an EIA whose category limited participation; a project still needing final approvals; and a coalition of communities, unions, and students. That's the Cobre Panamá pattern — file the acción de inconstitucionalidad, challenge the category and resolution, and rouse the public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the EIA and its category, the environmental resolution and conditions, the concession, the law or contract, the participation records. Panama's access-to-information rights let you demand what isn't public. Then read them hard for flaws — an understated impact, a category wrongly set low to skip the forum, a participation that never genuinely happened, a contract that skipped a transparent tender (a ground the Court weighed).

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the jungle — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of water, forest, and comarca. Lay the project over the water and rivers, the forest, and any comarca, so each lever is visible. Walking into the courts with the EIA, the resolution or the law, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA and category, the environmental resolution and conditions, the concession, the law/contract, the participation records** — from MiAmbiente and the Assembly; force out the rest under the access-to-information rules (8A).
- **Comarca and land records** — from the congreso general and the land authorities.
- **Ownership and financing** — company records and the contract terms.
- **The water-forest-comarca map** — the water, the forest, and any comarca, laid over the site.

- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Cobre Panamá showed how far a united public can go. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the water and land, a few tireless organisers, and respected local figures.

Build the broad alliance. Panama's great win married communities to **unions, students, and Indigenous organisations** — a breadth that shut the country down. Reach these national networks early, and hold meetings where people see the evidence.

Centre the comarca where it applies. Where the project touches Indigenous territory, the comarca and its congreso general hold strong rights; build around that leadership, at their direction.

Bring in the lawyers — early. Public-interest lawyers who file the acción de inconstitucionalidad and the contencioso actions. The constitutional action is open to anyone, so a supported community can trigger the proven route.

Build to last — and safely. Panamanian fights can run for years, and — 2023 showed — protest can be policed hard. Build clear roles, a secure archive, a way to decide together, a plan for the toll, and — if mobilising — legal support and safety plans, because arrests and rights violations are real.

STEP 4: LEGAL CHALLENGES & THE CONSTITUTIONAL ACTION

Law is Panama's sharpest lever, because the constitutional action has twice undone the country's biggest mine.

Object and Win the Forum First

Everything downstream is stronger if you objected in the EIA and, where the category allowed, the **foro público** — and if you challenged a category wrongly set low to deny that forum. The courts weigh that record.

The Acción de Inconstitucionalidad — the Proven Route

If the project rests on a **law or a contract approved by law**, the **acción de inconstitucionalidad** before the **Pleno of the Supreme Court** is the proven, powerful route: **anyone can file it**, and it can strike down the law entirely — as it did to the Cobre Panamá contracts in 2017 and, unanimously, in 2023. This is Panama's signature lever where a project has been blessed by legislation.

The Contencioso-Administrativo, Amparo, and Indigenous Rights

Where the harm is in an administrative act — the environmental resolution, the concession — challenge it in the **contencioso-administrativo** before the **Sala Tercera**, which annuls unlawful acts. Where a fundamental right is violated, **amparo de garantías** protects it. And on Indigenous land, the **comarca's consultation rights** are a further, strong lever. Match the tool to the fight: the constitutional action for a law, the Sala Tercera for a resolution, amparo for a right, the comarca for Indigenous territory.

The Honest Limits

Straight talk: the constitutional action is powerful and proven, but a win must be defended — the Cobre Panamá closure has been tangled in arbitration and a later government has sought to reopen it — litigation is slow, and protest can be policed hard. So use the strong tools — the EIA and forum, the acción de inconstitucionalidad, the contencioso courts, the comarca — but pair them with mobilisation and the press, defend the win, protect people, and count a struck law, an annulled resolution, a moratorium, delay, and exposure as wins alongside a clean, final closure.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A law becomes a constitutional target. Not "the mine is bad" but *"the law approving this contract is unconstitutional — as the Supreme Court twice found for Cobre Panamá."*

A category becomes a denied right. *"The EIA was placed in a low category to avoid the public forum the impact requires."*

A comarca becomes a shield. *"This crosses our comarca, and our congreso general was never properly consulted."*

The harm becomes a national story. *"The water and forest our country depends on — signed away in a contract we never agreed to."*

Match it to the venue: the objections to MiAmbiente; the law to the Pleno; the resolution to the Sala Tercera; the right to amparo; the comarca to its congreso; the water and the contract to the streets and the press.

STEP 5: MEDIA STRATEGY

In Panama, publicity and mobilisation are inseparable — Cobre Panamá became a national uprising. A free press and strong civic movements make the media front central, handled with care given the policing of protest.

Lead with people and place, not procedure. Not "the resolution was defective" but "the water and forest our country depends on — signed away in a contract we never agreed to." Use your strongest material: dated photographs, the map of the project over the water and comarca, the contract terms, and named residents.

Work several audiences at once. Local and national press and social media build the mass; unions, students, and Indigenous organisations amplify; international media reach the foreign parent's investors. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people — protest here has been met with arrests and violence, so plan for safety.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Access-to-information request (to MiAmbiente / the Assembly).

Subject: Solicitud de información — [proyecto].

"Under the access-to-information rules, we, residents of [place], request the EIA and its category, the environmental resolution and conditions, the concession, and the law/contract for [project] at [location]. [Contact.]"

8B — Objection / demand for a public forum.

Subject: Observaciones y solicitud de foro público — [proyecto].

"We, residents of [place], object to [project] and note its EIA was placed in a category that denied the foro público its impact requires. We ask for a public forum and that the resolution be refused. [Attach evidence.]"

8C — Acción de inconstitucionalidad (to a lawyer).

Subject: Acción de inconstitucionalidad — [law/contract for project].

"We instruct you to file an acción de inconstitucionalidad before the Pleno of the Supreme Court against [the law/contract approving project], as was done for Cobre Panamá. [Attach the law and our grounds.]"

8D — Contencioso-administrativo (to a lawyer).

Subject: Demanda contencioso-administrativa — [proyecto].

"We instruct you to challenge the environmental resolution for [project] before the Sala Tercera, on the grounds that [the EIA was defective / the category was wrong / participation was denied]. [Attach the resolution and our evidence.]"

8E — To the comarca / congreso general.

Subject: Consulta and consent on [project].

"[Project] affects our comarca / Indigenous territory. We call on the congreso general to assert our rights to prior consultation and consent. [Contact.]"

8F — To a financier or investor.

Subject: Environmental and legal risk in [project].

"We understand your institution may be [financing / invested in] [project] at [location], whose contract faces an acción de inconstitucionalidad and which threatens our water. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [water / forest] from [project].

"For generations the people of [place] have depended on [the water / the forest] at [location]. Now [project], by [company], threatens it — under a contract we never agreed to. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can stop this — here's how.

"[Project] threatens [our water / forest]. Panamanians stopped Cobre Panamá — 39 days in the streets, and the Supreme Court struck the law down. With the constitutional action, the comarca, the courts, and mobilisation behind us, we have a real chance — and we must protect one another, because protest here can be policed hard. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project, its footprint, and whether it rests on a law.** Water, a comarca, and a law approved by parliament are your sharpest levers.
2. **Object in the EIA and demand the public forum your category was denied (8B).**
3. **Request the documents (8A), and read the EIA, resolution, and contract for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **File the acción de inconstitucionalidad if there's a law (8C), or the contencioso challenge (8D).**
6. **Build a broad alliance and mobilise — safely (8H).** Cobre Panamá was undone this way.

Even lean, those six use your rights, build the record, hit the proven constitutional route, and rouse a broad public.

WHEN THE SYSTEM IS TILTED

Panama's tools are real, but the field can be tilted, and you must plan for it.

When a project is blessed by law. That's not the end — the acción de inconstitucionalidad has struck down the mining law twice. Use it, and mobilise.

When a win must be defended. The Cobre Panamá closure has been tangled in arbitration and a later government has sought to reopen it. Keep the movement and the pressure alive, and hold the state to the ruling.

When the category denies a forum. A project placed in a low category to skip the public forum is vulnerable — challenge the category.

When protest is policed hard. 2023 brought arrests and rights violations. Keep mobilisation peaceful, get legal support, protect the vulnerable, and use the repression itself as evidence.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Panama has documented problems with the capture of concessions and contracts, and the "too generous," untendered Cobre Panamá contract was at the heart of the 2023 anger.

How to spot it. Contracts approved without a transparent tender; resolutions against the evidence; a category set to skip the forum; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Comptroller General** examines public money. The **Public Ministry** and anti-corruption prosecutors handle graft. The **Defensoría del Pueblo** takes rights complaints. The **courts** can annul a tainted act and strike down an unconstitutional law. And Panama's **investigative press and civic networks** have exposed captured contracts.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Comptroller, the Public Ministry, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the water, comarca, and law levers aims it; the broad alliance builds the mass; the constitutional and contencioso actions press the case; the media raises the cost. Together they multiply. One at a time, they stall — and defend the win.

Early on (weeks 1–8): nail down the project, its footprint, and whether it rests on a law; object in the EIA and demand the forum; request the records; photograph the baseline; get a lawyer; build the broad alliance and centre the comarca where it applies.

In the thick of it (weeks–2 years): file the acción de inconstitucionalidad if there's a law, and the contencioso challenge; assert the comarca's rights; mobilise safely and open the media front.

The long haul (months–years): carry the constitutional and administrative cases through; keep the movement alive to defend a win against arbitration and reopening; hold the line for a struck law, an annulled resolution, a moratorium, delay, or a final closure.

FINAL ASSESSMENT

Stopping a destructive project in Panama can be done — the whole country rose against Cobre Panamá for 39 days, and the Supreme Court unanimously struck the mining law down, twice over. Hold both truths. Panama's tools are real: an EIA whose category can be challenged to win a public forum; contencioso courts that annul unlawful resolutions; the comarca's Indigenous consultation rights; and — the signature lever — an acción de inconstitucionalidad, open to anyone, that has twice undone the country's biggest mine. And the constraints are real: a closure tangled in arbitration and a later government seeking to reopen it, slow litigation, and protest that can be policed hard.

Here's the discipline that wins. Find whether the project rests on a law — the constitutional route — and the water, forest, or comarca that rouses a movement, and pry loose the record. Object in the EIA and demand the forum your category was denied. File the acción de inconstitucionalidad against the law, or the contencioso challenge against the resolution, and assert the comarca's rights. Build the broadest alliance you can, mobilise safely, and — above all — defend the win, because the state may try to reopen it. Count a struck law, an annulled resolution, a moratorium, delay, and a final closure as wins. That's what Cobre Panamá did — the streets and the Supreme Court together. So can you — safely.